

2017 WL 1739326 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Mamady DANFAKHA, Deandre Janette, Jabari Isom-Jenkins, Elhadji
Abdoulaye Yock, Anton Morrishow and Moukhamede Fall, Plaintiffs,

v.

CITY OF NEW YORK, New York City Police Department, New York City Police Officer Steven
Cruver, Shield 11884 of the 44 Precinct and New York City Police Officers John Doe, Defendants.

No. 0023342-2017.
March 5, 2017.

Date Purchased:

Date Filed:

NYSCEF Doc. No. 1

Plaintiff Danfakha's residence is: 3125 Park Avenue Bronx, NY 10456

Summons

Law Offices of Jason A. Steinberger, LLC, 505 Eighth Avenue, Suite 701, New York, NY 10018, (646) 256-1007, for
plaintiffs.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer,
or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney
within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days
after the service is complete if this Summons is not personally delivered to you within the State of New York) and in
case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the
Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: March 5, 2017 New York, NY

VERIFIED COMPLAINT

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information
and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Mamady Danfakha, (hereinafter referred to as "DANFAKHA") is
a resident of Bronx County, State of New York.

2. That at all times hereinafter mentioned, Plaintiff Deandre Janette, (hereinafter referred to as “JANETTE”) is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Jabari Isom-Jenkins (hereinafter referred to as “ISOM-JENKINS”) is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Plaintiff Elhadji Abdoulaye Yock, (hereinafter referred to as “YOCK”) is a resident of Bronx County, State of New York
5. That at all times hereinafter mentioned, Plaintiff Anton Morrishow, (hereinafter referred to as “MORRISHOW”) is a resident of Bronx County, State of New York
6. That at all times hereinafter mentioned, Plaintiff Moukhamed Fall, (hereinafter referred to as “FALL”) is a resident of Bronx County, State of New York.
7. That at all times hereinafter mentioned, the New York City Police Officer Steven Cruver, Shield 11884 of the 44 Precinct (hereinafter referred to as “CRUVER”) was employed by the New York City Police Department.
8. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
9. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
10. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
11. On or about December 29, 2015 notice required by Municipal Law 50-E was given to City of New York, by personal service for all Plaintiffs. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiffs and no compensation has been offered by the City of New York.
12. That on or about December 9, 2015 at approximately 10:00AM in the vicinity of 1305 Sheridan Avenue, Bronx, NY Plaintiffs were standing outside and speaking with one another when CRUVER and DOES stopped, handcuffed and arrested Plaintiffs.
13. That at no time were Plaintiffs engaged in any illegal or unlawful activity.
14. That at no time did Plaintiffs assault anyone.
15. That at no time did Plaintiffs possess anything of an illegal nature.
16. That the victim of the assault told the CRUVER and DOES that Plaintiffs were not involved in the assault.
17. That despite being told that Plaintiffs were not involved in the assault, CRUVER and DOES arrested Plaintiffs anyway.
18. That after Plaintiffs were arrested, they were transported to the 44 police precinct.

19. That while Plaintiffs were inside of the 44 precinct, they were held in a holding cell occupied with other males for several hours.

20. That after several hours Plaintiffs were removed from the 44 precinct and brought to Bronx County Central Booking, located at 215 East 161 Street, Bronx County.

21. That while Plaintiffs were inside of Bronx County Central Booking, Plaintiffs were held in a holding cell occupied with other males for several hours.

22. That on or about December 10, 2015 Plaintiffs were each arraigned and charged with Gang Assault in the Second Degree and related offenses.

23. That at the time of their arraignment, each of the Plaintiffs were released on their own recognizance and ordered to return to court.

24. That on and between December 10, 2015 and September 12, 2016, Mamady Danfakha made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

25. That on and between December 10, 2015 and October 12, 2016, Deandre Jeannette made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

26. That on and between December 10, 2015 and October 12, 2016, Jabari Isom-Jenkins made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

27. That on and between December 10, 2015 and October 24, 2016, Elhadji Abdoulaye Yock made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

28. That on and between December 10, 2015 and the date of dismissal, Anton Morrishow made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

29. That on and between December 10, 2015 and the date of dismissal Moukamede Fall made several court appearances until the case was dismissed upon the application of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

30. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 29, as if more fully stated herein at length.

31. That Defendants acted with actual malice toward Plaintiff DANFAKHA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

32. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

33. That as a result of the actions by Defendants, Plaintiff DANFAKHA was traumatized and fears his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

34. That as a result of the Defendants' actions, Plaintiff DANFAKHA has been unable to sleep.

35. That as a result of the Defendants' actions, Plaintiff DANFAKHA missed several days of school.

36. That as a result of the Defendants' actions, Plaintiff DANFAKHA missed several days of work.

37. That as a result of the Defendants' actions Plaintiff DANFAKHA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

38. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 37, as if more fully stated herein at length.

39. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff DANFAKHA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

40. Defendants having no lawful authority to arrest Plaintiff DANFAKHA, did, nevertheless, unlawfully arrest Plaintiff DANFAKHA with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DANFAKHA is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. Defendants conspired to violate Plaintiff DANFAKHA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DANFAKHA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

43. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 42, as if more fully stated herein at length.

44. Plaintiff DANFAKHA was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DANFAKHA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff DANFAKHA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DANFAKHA. Plaintiff DANFAKHA is thus entitled to compensatory and exemplary damages.

45. That during the pendency of the case, Defendants maliciously prosecuted DANFAKHA by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. DANFAKHA is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

46. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 45, as if more fully stated herein at length.

47. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

48. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

49. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DANFAKHA. Plaintiff DANFAKHA is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

51. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 50, as if more fully stated herein at length.

52. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DANFAKHA.

53. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DANFAKHA.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

54. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53 as if more fully stated herein at length.

55. That Defendants acted with actual malice toward Plaintiff JANETTE and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff JANETTE.

56. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

57. That as a result of the actions by Defendants, Plaintiff JANETTE was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

58. That as a result of the Defendants' actions, Plaintiff JANETTE has been unable to sleep.

59. That as a result of the Defendants' actions, Plaintiff JANETTE was forced to miss multiple days of school

60. That as a result of the Defendants' actions, Plaintiff JANETTE was forced to miss multiple days of work.

61. That as a result of the Defendants' actions Plaintiff JANETTE sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

62. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 61, as if more fully stated herein at length.

63. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff JANETTE as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

64. Defendants having no lawful authority to arrest Plaintiff JANETTE, did, nevertheless, unlawfully arrest Plaintiff JANETTE with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff JANETTE is entitled to both compensatory and exemplary damages.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

65. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 64, as if more fully stated herein at length.

66. Defendants conspired to violate Plaintiff JANETTE's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff JANETTE is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66, as if more fully stated herein at length.

68. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff JANETTE to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff JANETTE by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff JANETTE. Plaintiff JANETTE is thus entitled to compensatory and exemplary damages.

69. That during the pendency of the case, Defendants maliciously prosecuted JANETTE by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. JANETTE is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

70. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 69, as if more fully stated herein at length.

71. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

72. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

73. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 72, as if more fully stated herein at length.

74. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff JANETTE. Plaintiff JANETTE is thus entitled to compensatory exemplary damages.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

75. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 74, as if more fully stated herein at length.

76. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff JANETTE.

77. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff JANETTE.

AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS

78. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 77 as if more fully stated herein at length.

79. That Defendants acted with actual malice toward Plaintiff ISOM-JENKINS and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff ISOM-JENKINS.

80. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

81. That as a result of the actions by Defendants, Plaintiff ISOM-JENKINS was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

82. That as a result of the Defendants' actions, Plaintiff ISOM-JENKINS has been unable to sleep.

83. That as a result of the Defendants' actions, Plaintiff ISOM-JENKINS was forced to miss multiple days of school.

84. That as a result of the Defendants' actions, Plaintiff ISOM-JENKINS was forced to miss multiple days of work.

85. That as a result of the Defendants' actions Plaintiff ISOM-JENKINS sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

86. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1I through 85, as if more fully stated herein at length.

87. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Plaintiff ISOM-JENKINS as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

88. Defendants having no lawful authority to arrest Plaintiff ISOM-JENKINS, did, nevertheless, unlawfully arrest Plaintiff ISOM-JENKINS with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff ISOM-JENKINS is entitled to both compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

89. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 88, as if more fully stated herein at length.

90. Defendants conspired to violate Plaintiff ISOM-JENKINS's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff ISOM-JENKINS is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

91. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 90, as if more fully stated herein at length.

92. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff ISOM-JENKINS to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff ISOM-JENKINS by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff ISOM-JENKINS. Plaintiff ISOM-JENKINS is thus entitled to compensatory and exemplary damages.

93. That during the pendency of the case, Defendants maliciously prosecuted ISOM-JENKINS by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. ISOM-JENKINS is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

94. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 93, as if more fully stated herein at length.

95. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

96. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A TWENTIETH CAUSE OF ACTION AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

97. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 96, as if more fully stated herein at length.

98. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff ISOM-JENKINS. Plaintiff ISOM-JENKINS is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

99. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 98, as if more fully stated herein at length.

100. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff ISOM-JENKINS.

101. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff ISOM-JENKINS.

AS AND FOR AN TWENTY-SECOND CAUSE OF ACTION DEFENDANTS

102. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through

101 as if more fully stated herein at length.

103. That Defendants acted with actual malice toward Elhadji Abdoulaye Yock and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Elhadji Abdoulaye Yock.

104. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

105. That as a result of the actions by Defendants, Elhadji Abdoulaye Yock was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

106. That as a result of the Defendants' actions, Elhadji Abdoulaye Yock has been unable to sleep.

107. That as a result of the Defendants' actions, Elhadji Abdoulaye Yock was forced to miss multiple days of school.

108. That as a result of the Defendants' actions, Elhadji Abdoulaye Yock was forced to miss multiple days of work.

109. That as a result of the Defendants' actions Elhadji Abdoulaye Yock sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS

110. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 109, as if more fully stated herein at length.

111. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of Elhadji Abdoulaye Yock as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

112. Defendants having no lawful authority to arrest Elhadji Abdoulaye Yock, did, nevertheless, unlawfully arrest Elhadji Abdoulaye Yock with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Elhadji Abdoulaye Yock is entitled to both compensatory and exemplary damages.

AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

113. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

114. Defendants conspired to violate Elhadji Abdoulaye Yock's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Elhadji Abdoulaye Yock is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TWENTY-FIFTH CAUSE OF ACTION AGAINST DEFENDANTS

115. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 114, as if more fully stated herein at length.

116. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Elhadji Abdoulaye Yock to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Elhadji Abdoulaye Yock by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Elhadji Abdoulaye Yock. Elhadji Abdoulaye Yock is thus entitled to compensatory and exemplary damages.

117. That during the pendency of the case, Defendants maliciously prosecuted Elhadji Abdoulaye Yock by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Elhadji Abdoulaye Yock is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWENTY-SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

118. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 117, as if more fully stated herein at length.

119. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

120. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

121. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 120, as if more fully stated herein at length.

122. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Elhadji Abdoulaye Yock. Elhadji Abdoulaye Yock is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

123. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 122, as if more fully stated herein at length.

124. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Elhadji Abdoulaye Yock.

125. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Elhadji Abdoulaye Yock.

AS AND FOR AN TWENTY-NINTH CAUSE OF ACTION DEFENDANTS

126. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 125 as if more fully stated herein at length.

127. That Defendants acted with actual malice toward MORRISHOW and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the MORRISHOW.

128. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

129. That as a result of the actions by Defendants, MORRISHOW was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

130. That as a result of the Defendants' actions, MORRISHOW has been unable to sleep.

131. That as a result of the Defendants' actions, MORRISHOW was forced to miss multiple days of school.

132. That as a result of the Defendants' actions, MORRISHOW was forced to miss multiple days of work.

133. That as a result of the Defendants' actions MORRISHOW sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTIETH CAUSE OF ACTION AGAINST DEFENDANTS

134. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 133, as if more fully stated herein at length.

135. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of MORRISHOW as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

136. Defendants having no lawful authority to arrest MORRISHOW, did, nevertheless, unlawfully arrest MORRISHOW with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus MORRISHOW is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-FIRST CAUSE OF ACTION AGAINST DEFENDANTS

137. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 136, as if more fully stated herein at length.

138. Defendants conspired to violate MORRISHOW's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus MORRISHOW is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION AGAINST DEFENDANTS

139. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 137, as if more fully stated herein at length.

140. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused MORRISHOW to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of MORRISHOW by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of MORRISHOW. MORRISHOW is thus entitled to compensatory and exemplary damages.

141. That during the pendency of the case, Defendants maliciously prosecuted MORRISHOW by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. MORRISHOW is thus entitled to compensatory and exemplary damages.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

142. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 141, as if more fully stated herein at length.

143. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

144. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A THIRTY-FOURTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

145. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 144, as if more fully stated herein at length.

146. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including MORRISHOW. MORRISHOW is thus entitled to compensatory exemplary damages.

**AS AND FOR A THIRTY-FIFTH CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

147. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 146, as if more fully stated herein at length.

148. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of MORRISHOW. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of MORRISHOW.

AS AND FOR AN THIRTY-SIXTH CAUSE OF ACTION DEFENDANTS

149. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 148 as if more fully stated herein at length.

150. That Defendants acted with actual malice toward FALL and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the FALL.

151. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

152. That as a result of the actions by Defendants, FALL was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

153. That as a result of the Defendants' actions, FALL has been unable to sleep.

154. That as a result of the Defendants' actions, FALL was forced to miss multiple days of school.

155. That as a result of the Defendants' actions, FALL was forced to miss multiple days of work.

156. That as a result of the Defendants' actions FALL sustained damage to their persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A THIRTY-SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

157. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 156, as if more fully stated herein at length.

158. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of FALL as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

159. Defendants having no lawful authority to arrest FALL, did, nevertheless, unlawfully arrest FALL with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus FALL is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRTY-EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

160. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 159, as if more fully stated herein at length.

161. Defendants conspired to violate FALL's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus FALL is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A THIRTY-NINTH CAUSE OF ACTION AGAINST DEFENDANTS

162. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 161, as if more fully stated herein at length.

163. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused FALL to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of FALL by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of FALL. FALL is thus entitled to compensatory and exemplary damages.

164. That during the pendency of the case, Defendants maliciously prosecuted FALL by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. FALL is thus entitled to compensatory and exemplary damages.

**AS AND FOR A FORTIETH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

165. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 164, as if more fully stated herein at length.

166. At all times pertinent hereto, CRUVER and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

167. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that CRUVER and DOES committed within the scope of their employment.

**AS AND FOR A FORTY-FIRST CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

168. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 167, as if more fully stated herein at length.

169. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including FALL. FALL is thus entitled to compensatory exemplary damages.

**AS AND FOR A FORTY-SECOND CAUSE OF ACTION AS AGAINST
CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

170. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 169, as if more fully stated herein at length.

171. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of FALL. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of FALL.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the ninth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the tenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eleventh cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the twelfth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the thirteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the seventeenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the eighteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the nineteenth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the forty-first cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the forty-second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

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